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Don't be vague.
Go to The Hague.

Kenyan politicians
Referring to
election violence cases, 2007

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ended without any indictments. The ICC has recently tried to expand its scope by ruling that it can hear cases relating to countries that are not ICC signatories if the cases concern refugees who have fled from a nonsignatory nation to a signatory one. In 2019, lawyers filed a case on behalf of Syrian refugees (Syria is not a signatory to the Rome Statute) who fled to Jordan (which is).

The majority of cases that have come before the ICC are from Africa, which has led to the



In 2016, the ICC convicted former Congolese vice president Jean-Pierre Bemba Gombo of murder, rape, and pillaging. However, the conviction was overturned in 2018.

Court being criticized as a neocolonial institution and some countries threatening to withdraw from the ICC. Other countries have tried to withdraw in protest at the ICC beginning an investigation in their country. In 2018, when the ICC began investigating the government of the Philippines for crimes against humanity committed during its “war on drugs,” it officially withdrew from the Court.

Only a handful of people are serving sentences as a result of convictions by the ICC. Canadian professor of international criminal law William Schabas described the progress of the ICC as “glacial” in its early years. Even where cases have resulted in a conviction, there have been some high-profile appeals. In 2016, Jean-Pierre Bemba Gombo, former vice president of the Democratic Republic of Congo, was convicted for war crimes and crimes against humanity when the militia he commanded was found to have carried out massacres in the Central African Republic in 2003. The conviction was later overturned on appeal because of procedural errors in his trial.

Despite these criticisms, the ICC remains an important forum for investigating some of the deadliest atrocities taking place around the world. ■

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There must be justice.
There must be fairness.

Fatou Bensouda
Chief prosecutor of the ICC

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Fatou Bensouda

Former lawyer and Gambian justice minister Fatou Bom Bensouda was born in 1961, and has served as the ICC's prosecutor since 2012. As such, she is responsible for making decisions on which suspects to investigate and then which to prosecute for international crimes. The prosecutor's office is independent of the Court, so to open an investigation, the prosecutor needs to apply for permission to a panel of judges at the ICC.

During her term in office, ending in 2021, Bensouda has broadened the focus of the ICC, launching investigations into possible war crimes in Afghanistan, Israel, and Myanmar and Bangladesh. She has also tried to increase the number of prosecutions for rape and the exploitation of women in armed conflict.